

KAVANAUGH, J., concurring in part

ing retroactivity for *Batson v. Kentucky*, 476 U. S. 79 (1986)); *DeStefano v. Woods*, 392 U. S. 631, 635 (1968) (*per curiam*) (rejecting retroactivity for *Duncan*, 391 U. S. 145).

So assuming that the Court faithfully applies *Teague*, today's decision will not apply retroactively on federal habeas corpus review and will not disturb convictions that are final.⁸

In addition, as to ineffective-assistance-of-counsel claims, an attorney presumably would not have been deficient for failing to raise a constitutional jury-unanimity argument before today's decision—or at the very least, before the Court granted certiorari in this case. Before today, after all, this Court's precedents had repeatedly allowed non-unanimous juries in state criminal cases. In that situation, the Courts of Appeals have consistently held that an attorney is not ineffective for failing to anticipate or advocate for the overruling of a constitutional precedent of this Court. See, *e. g.*, *Walker v. United States*, 810 F. 3d 568, 577 (CA8 2016); *United States v. Smith*, 241 F. 3d 546, 548 (CA7 2001); *Honeycutt v. Mahoney*, 698 F. 2d 213, 216–217 (CA4 1983); see also *Steiner v. United States*, 940 F. 3d 1282, 1293 (CA11 2019) (*per curiam*); *Snider v. United States*, 908 F. 3d 183, 192 (CA6 2018); *Green v. Johnson*, 116 F. 3d 1115, 1125 (CA5 1997).

For those reasons, the reliance interests at stake in this case are not especially substantial, and they do not mandate adherence to *Apodaca*.⁹

⁸In *Allen v. Hardy*, 478 U. S. 255 (1986) (*per curiam*), this Court concluded—without briefing or oral argument—that *Batson* would not apply retroactively. Under the well-settled *Teague* principles, there should be no doubt that today's decision likewise will not apply retroactively on collateral review.

⁹JUSTICE ALITO's characteristically incisive dissent rests largely on his view of the States' reliance interests. My respectful disagreement with JUSTICE ALITO primarily boils down to our different assessments of those reliance interests—in particular, our different evaluations of how readily Louisiana and Oregon can adjust to an overruling of *Apodaca*.